IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON, Plaintiff,
vs.
ASHLE' PENN, Defendant, Pro Se.
Case No. 24CR49043

DEFENDANT'S EMERGENCY MOTION TO DISMISS INDICTMENT WITH PREJUDICE
Oral Argument Requested Pursuant to UTCR 4.050(1) — Estimated Time: 90 Minutes
Court Reporter Requested Pursuant to UTCR 4.050(1)

DISCLOSURE AND CERTIFICATION PURSUANT TO UTCR 4.010 AND UTCR 1.090

Defendant AshLe' Penn, appearing pro se after this Court placed her on the unrepresented list, certifies pursuant to UTCR 4.010 and UTCR 1.090 that this motion and memorandum are submitted in good faith; that the legal contentions herein are warranted by existing law or a non-frivolous argument for the extension, modification, or reversal of existing law; that every factual contention has evidentiary support or is specifically identified as likely to have evidentiary support after a reasonable opportunity for investigation; that no known factual misrepresentations are presented; and that all legal authorities cited are drawn from published court opinions, constitutional provisions, or statutory texts. This document is filed in compliance with the Washington County Supplementary Local Rules (SLR), UTCR Chapter 2 document standards, and UTCR 21.100 et seq. (electronic filing).

PRELIMINARY STATEMENT: THE SOURCE OF EVERY FACT IN THIS MOTION

Before this Court considers a single legal argument, it must understand one thing about the record before it.

Every fact stated in this motion comes from the State.

Not from Defendant. Not from witnesses Defendant has identified. Not from evidence Defendant has gathered or theories Defendant has constructed. Every document cited herein was produced by the Washington County Sheriff's Office, the Washington County District Attorney's

Office, or the Washington County Circuit Court itself. Every sworn statement quoted herein was made by a law enforcement officer, a loss prevention employee working in coordination with law enforcement, or a prosecutor. Every inconsistency identified herein is an inconsistency between one State-generated document and another State-generated document. Every omission identified herein is an omission from a State-generated document.

Defendant does not ask this Court to accept her account of what happened. She offers none. She asks this Court to read what the State has written, compare it to what the State has written elsewhere, measure both against what the Constitution requires, and draw the conclusions that follow.

The exhibits attached to this motion are organized as follows:

- **Exhibit A**: Chronological Record of Proceedings (complete timeline)
- **Exhibit B**: Deputy Rambin's Primary Report, Case No. GO 50 2024-13459
- **Exhibit C**: Deputy Orozco's Supplemental Report (Follow-Up Report #4, dated 09/24/2024)
- **Exhibit D**: Deputy Rambin's Probable Cause Affidavit in Support of Arrest (09/18/2024)
- **Exhibit E**: Probable Cause Order Form — unsigned, undated, no judicial finding entered
- **Exhibit F**: Washington County Circuit Court Case File, 24CR49043 — as produced in response to Defendant's records request (containing no probable cause affidavit and no police reports)
- **Exhibit G**: Deputy Rambin's Supplemental Report dated December 27, 2024
- **Exhibit H**: Prior Counsel's Motion to Suppress, filed April 7, 2025 (Cornerstone Law Group)
- **Exhibit I**: Loss Prevention Agent Sarah Fillis's Minute-by-Minute Activity Report
- **Exhibit J**: Deputy Stone's Report, Case No. GO 50 2024-13459
- **Exhibit K**: Indictment, Case No. 24CR49043, dated January 14, 2025
- **Exhibit L**: April 29, 2025 Hearing Record
- **Exhibit M**: February 9, 2026 Proceeding Record

Where this motion quotes from these exhibits, it quotes verbatim. Where it identifies an omission, the omission is documented by the absence of the relevant content from the exhibit identified. The Court is invited at any point to correct this filing if the record it holds differs from the record described herein. Defendant proceeds on the basis of what has been produced to her.

I. THE CONSTITUTIONAL FRAMEWORK: OBLIGATIONS THAT ARE NOT DISCRETIONARY

Before turning to the facts, this motion sets out the constitutional and statutory obligations that govern each actor in this proceeding. These are not aspirational standards. They are bright-line rules, clearly established in federal and Oregon law, that define the minimum conduct the Constitution demands. They are stated here not as argument but as measurement — so that when the Court reviews what the State has produced, it has a fixed standard against which to measure it.

A. The Obligations of Law Enforcement

1. Probable Cause at the Moment of Arrest

A warrantless arrest is constitutionally permissible only when the arresting officer has probable cause — a reasonable belief, grounded in articulable facts known to the officer at the moment of arrest, that the person arrested has committed a crime. *Beck v. Ohio*, 379 U.S. 89, 91 (1964). This is not a standard assessed in hindsight. It is assessed at the moment the officer acts. Facts learned after the arrest cannot supply probable cause that did not exist before it. *Id.*

The probable cause determination must be based on facts the officer personally knows or has received through a constitutionally sufficient channel. An officer may not arrest on a hunch, a generalized suspicion, or a racial resemblance to a prior suspect. *Terry v. Ohio*, 392 U.S. 1, 21 (1968); *State v. Ehly*, 317 Or. 66, 80 (1993).

2. The Collective Knowledge Doctrine and Its Limits

When an arresting officer acts on information relayed by another officer, the collective knowledge doctrine may permit the arresting officer to rely on that relay — but only if the originating officer independently possessed both subjective and objective probable cause at the moment of the relay. *State v. Soldahl*, 331 Or. 420, 428 (2000). The doctrine transmits valid probable cause. It cannot create probable cause where none existed. If the originating officer lacked either the subjective belief or the objective basis for that belief, the relay is constitutionally insufficient and the arrest fails regardless of what the arresting officer was told. *Id.*

3. Civilian Informant Tips

When probable cause rests in whole or in part on information provided by a civilian — a person who is not a law enforcement officer — that information must carry sufficient indicia of reliability before it can support an arrest. *Illinois v. Gates*, 462 U.S. 213, 238 (1983); *State v. Holdorf*, 355 Or. 812, 822 (2014). Reliability is assessed under the totality of the circumstances and requires, at minimum, some showing of the informant's basis of knowledge, track record, or independent corroboration of the tip's content. *State v. Marx*, 287 Or. 351 (1979). An unverified assertion by a civilian that a person present in a store is the same person who committed a crime the prior day, without documentation of the basis for that identification and without corroboration, does not satisfy this standard.

4. The Duty Not to Fabricate Evidence

A law enforcement officer who continues to investigate a suspect after making a written acknowledgment that the suspect is innocent of the crime for which they were arrested, and who directs the construction of a new evidentiary basis targeting that same suspect, engages in deliberate fabrication of evidence in violation of the Fourteenth Amendment. *Spencer v. Peters*, 857 F.3d 789, 793 (9th Cir. 2017); *Devereaux v. Abbey*, 263 F.3d 1070, 1076 (9th Cir. 2001). The written acknowledgment of innocence independently satisfies the knowledge element of a fabrication claim. *Id.*

5. The 36-Hour Judicial Review Requirement

ORS 133.145 requires that when a person is arrested without a warrant, a judicial officer must review the circumstances of the arrest and make a written finding as to whether probable cause existed, within 36 hours of the arrest. This is not a procedural formality. It is the constitutional mechanism by which a neutral magistrate interposes between the executive power of arrest and the continued deprivation of a person's liberty. *Gerstein v. Pugh*, 420 U.S. 103, 114 (1975). The written finding must be made. It must be signed. It must be filed.

B. The Obligations of the Prosecutor

1. The Duty to Disclose Exculpatory Evidence

The Due Process Clause of the Fourteenth Amendment requires the prosecution to disclose evidence that is favorable to the accused and material to guilt or punishment. *Brady v. Maryland*, 373 U.S. 83, 87 (1963). This obligation is not triggered by a defense request. It is affirmative and continuous. It applies to evidence in the possession of any member of the prosecution team, including law enforcement. *Kyles v. Whitley*, 514 U.S. 419, 437 (1995). It applies at the grand jury stage. *United States v. Basurto*, 497 F.2d 781, 785 (9th Cir. 1974).

2. The Duty to Disclose Impeachment Evidence

Evidence that undermines the credibility of the prosecution's own witnesses is Brady material. *Giglio v. United States*, 405 U.S. 150, 154 (1972). The label the State assigns to such evidence — "merely impeaching," "collateral," "cumulative" — is legally irrelevant. If the evidence would allow a factfinder to assess the reliability of the prosecution's witnesses, it must be disclosed. *Id.*

3. The Duty Not to Present False Testimony

The Due Process Clause prohibits the State from obtaining a conviction — or an indictment — through testimony it knows to be false. *Napue v. Illinois*, 360 U.S. 264, 269 (1959). This obligation extends to grand jury proceedings. *Basurto*, 497 F.2d at 785. A prosecutor who presents a witness before a grand jury while in possession of sworn law enforcement documentation that directly contradicts that witness's testimony, and who makes no correction,

has knowingly presented false testimony within the meaning of *Napue*. *Strickler v. Greene*, 527 U.S. 263, 281 (1999) (willful blindness satisfies the knowledge element).

4. The Duty Not to Prosecute Without Probable Cause

Oregon RPC 3.8(a) prohibits a prosecutor from pursuing a charge that the prosecutor knows is not supported by probable cause. Oregon RPC 3.8(d) requires disclosure to the grand jury of evidence that tends to negate guilt. Oregon RPC 3.8(f) prohibits a prosecutor from presenting or eliciting false testimony. These are not ethical aspirations. They are enforceable professional obligations that define the boundaries of lawful prosecution.

5. The Prosecutor's Paramount Obligation

The prosecutor's obligation is not to win. It is to do justice. *Berger v. United States*, 295 U.S. 78, 88 (1935). The power of the State in a criminal prosecution is not a tool for securing convictions. It is a trust — held on behalf of the public, exercised within constitutional limits, and subject to the overriding duty that the guilty be convicted and the innocent go free. *Id.* A prosecution maintained in the face of the arresting officer's own written acknowledgment of error is not the exercise of that trust. It is its betrayal.

C. The Obligations of the Court

1. The Duty to Appoint Counsel

The Sixth Amendment guarantees the right to counsel in all felony prosecutions. *Gideon v. Wainwright*, 372 U.S. 335 (1963). The Oregon Supreme Court held in *State v. Roberts*, 374 Or. 821, 859--860 (2026), that when a felony defendant has been without appointed counsel for more than 90 consecutive days post-arraignment, dismissal of the charges without prejudice is ordinarily required and constitutes a legal duty of the trial court. That duty is not discretionary. It is not conditioned on a showing of prejudice. It attaches on Day 91 and does not expire.

2. The Duty to Provide a Fair Tribunal

Due process requires not merely a fair trial but a fair tribunal. *In re Murchison*, 349 U.S. 133, 136 (1955). A judge who has prejudged the central factual or legal question in a case — who has announced a conclusion before evidence is presented or argument is heard — has not provided a fair tribunal within the meaning of the Due Process Clause. *Id.* Oregon CJC Rule 2.2 requires a judge to uphold and apply the law fairly and impartially. Rule 2.6(A) requires a judge to accord every person with a legal interest in a proceeding the right to be heard according to law. Rule 2.11 requires disqualification when a judge's impartiality might reasonably be questioned.

3. The Duty to Honor Representations Made from the Bench

When a court makes a representation to an unrepresented party — particularly a representation on which that party will foreseeably rely — due process requires that the representation be honored or that the party be given notice and an opportunity to be heard before it is withdrawn. *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950). A court that promises no proceedings will occur without counsel, and then conducts proceedings without counsel, has not merely broken a promise. It has violated the due process reliance interest it created.

4. The Duty to Act on Constitutional Violations Placed Before It

A court before which a documented constitutional violation is placed does not have the option of inaction. Oregon CJC Rule 2.2 imposes an affirmative duty to uphold and apply the law. When the record before a court establishes a constitutional violation — particularly one that is ongoing and compounding — the court's obligation is to act. Silence is not neutrality. In the context of a continuing constitutional violation, judicial inaction is judicial endorsement.

[Section II — The Factual Record: What the State Has Produced, and What It Reveals — to follow]

II. THE FACTUAL RECORD: WHAT THE STATE HAS PRODUCED, AND WHAT IT REVEALS

This section proceeds document by document, in chronological order, measuring each against the constitutional obligations enumerated in Section I. Every fact stated below is drawn from an exhibit identified by letter. Every quotation is verbatim. Where a document is silent on a matter it should address, that silence is noted — not as proof of wrongdoing, but as a fact the Court is invited to evaluate.

The State is invited to correct any characterization herein that its records do not support. Defendant proceeds on the basis of what has been produced to her.

A. September 17, 2024: The Prior-Day Theft — A Crime Defendant Did Not Commit

On September 17, 2024, a theft occurred at Target, 12675 NW Cornell Road, Portland, Oregon. The suspect was a woman. Surveillance footage of that woman was recorded on a thumb drive. ***(Exhibit B — Rambin Primary Report.)***

Defendant was not present at Target on September 17, 2024. No document produced by the State places her there. No officer has claimed to have observed her there. The surveillance footage of the September 17 suspect — collected by Rambin himself on the evening of September 18 — ultimately confirmed, in Rambin's own words, that the September 17 suspect "was not Ashle Penn." ***(Exhibit G — Rambin Supplemental Report, December 27, 2024.)***

That conclusion was available to Rambin on the evening of September 18, 2024, before he arrested anyone. The footage was in his possession. He did not review it.

B. September 18, 2024, 6:54 PM: The First Call — Fillis Calls Dispatch

At 6:54 PM on September 18, 2024, the Washington County Computer-Aided Dispatch system received a call. The system recorded the caller in real time as: ***"SARA.. LP." (Exhibit N — CAD Incident Detail Report, Incident No. WP242621210.)***

Sarah. Loss Prevention. Fillis.

The problem type recorded by the dispatch system at the moment of the call was: ***"THF — THEFT COLD."*** *A cold theft. A past-tense report of a crime that had already occurred — the September 17 incident. The incident type was recorded as* ***"1 OFFICER BEAT"*** *— a routine beat officer response, Priority 4, the lowest priority classification. The call was ultimately closed with the notation* ***"Cancel Reason: PD Call."***

This is the call that sent Rambin to Target the first time. It was a cold theft report. It was not a theft in progress. It was not an emergency. And the caller was Fillis — recorded by a machine, in real time, at the moment she called.

The constitutional significance of this document cannot be overstated. Unlike a police report — which is written after the fact, by the officer whose conduct it describes — the CAD system records automatically, contemporaneously, and without the ability of any officer to edit its contents after the fact. What the CAD system recorded on September 18, 2024 at 6:54 PM is what happened at 6:54 PM on September 18, 2024. Fillis called. Not Baker.

C. September 18, 2024, Approximately 6:00–7:00 PM: Rambin's First Visit — The Footage He Did Not Review

Rambin responded to Fillis's call. He arrived at Target, took a report of the September 17 theft from Fillis, and collected a thumb drive containing surveillance footage of the September 17 suspect. ***(Exhibit B.)***

He left without reviewing the footage.

The Fourth Amendment's probable cause requirement, as articulated in Beck v. Ohio, 379 U.S. 89, 91 (1964), demands that an officer's belief be grounded in facts actually known to the officer at the time of arrest. An officer who collects footage that would resolve the identity question and declines to review it before making an arrest has not acted on facts he knows. He has acted on facts he has chosen not to learn. The Constitution does not reward that choice.

D. September 18, 2024, Approximately 9:03–9:39 PM: Defendant's Presence at Target

Loss Prevention Agent Sarah Fillis maintained a minute-by-minute activity log covering the period from 9:03 PM through 9:39 PM on September 18, 2024. ***(Exhibit I — Fillis Minute-by-Minute Activity Report.)***

That log — produced by the State, maintained by the State's cooperating witness, and reflecting Fillis's own contemporaneous observations — records no security tag removal by Defendant, no concealment of merchandise by Defendant, and no act consistent with theft by Defendant during her 35-minute presence in the store.

Defendant entered with a Target bag and purchase receipts to make a return. The minute-by-minute log does not contradict this. It confirms it by omission: in 36 minutes of documented observation, Fillis recorded nothing that would constitute probable cause to arrest Defendant for theft.

E. September 18, 2024, Approximately 9:14–9:16 PM: The Second Call and the Relay Chain

At some point during Defendant's presence in the store, Fillis placed a second call — this time reporting that the female from the September 17 incident had returned. Rambin's own primary report describes what happened next in plain terms:

> *"Dep. Orozco was notified by Sarah that the female from this case had returned to the store."*
> ***(Exhibit B — Rambin Primary Report.)***

Orozco was notified. Not Rambin. The relay chain, as documented by Rambin himself, ran: Fillis → Orozco → Rambin.

Orozco's own supplemental report, filed September 24, 2024 — six days after the arrest — describes his role as follows: he was dispatched to assist, and "Deputy Rambin had probable cause to arrest." ***(Exhibit C — Orozco Supplemental Report.)*** *Orozco does not claim in his own report to have been contacted by Fillis. He does not claim to have formed an independent probable cause determination. He does not describe any conversation with Fillis. He was dispatched. He assisted. Rambin, in his account, had the probable cause.*

The Court is now presented with the following documented sequence:

1. *Fillis called. The CAD system recorded this in real time.* ***(Exhibit N.)***
2. *Orozco was notified by Fillis, per Rambin's own report.* ***(Exhibit B.)***
3. *Orozco relayed to Rambin.*
4. *Rambin returned to Target.*
5. *Rambin declared probable cause before Defendant exited the store, per Deputy Stone's report: "Deputy Rambin advised me that he had probable cause to arrest Ashle at that point."* ***(Exhibit J — Stone Report.)***
6. *Rambin had not spoken to Fillis since his first visit. He had not reviewed the footage. He had not observed any criminal conduct by Defendant.*

Under State v. Soldahl, 331 Or. 420, 428 (2000), the collective knowledge doctrine permits an arresting officer to rely on a relay from another officer — but only if the originating officer independently possessed both subjective and objective probable cause. The originating officer here is Orozco. His own report contains no claim of independent probable cause formation. It contains no claim of having been contacted by Fillis. It says he was dispatched to assist and that Rambin had probable cause.

An officer who does not claim to have formed probable cause cannot be the constitutional source of probable cause under Soldahl. The relay chain, as documented by the State's own reports, fails at its origin.

F. The Probable Cause Affidavit: A Subjectless Sentence and What It Conceals

Rambin prepared a document titled Affidavit in Support of Probable Cause Arrest in connection with this arrest. ***(Exhibit D.)*** *That document contains the following sentence describing the pivotal moment — the moment that sent deputies back to Target:*

> *"Later on September 18, 2024, called again to report that the female was back in the store."*

There is no subject. In a sworn document prepared to justify the deprivation of a person's liberty, the sentence describing the act that initiated the arrest has no grammatical subject.

Rambin's primary report supplies the missing subject: it was Fillis calling Orozco. ***(Exhibit B.)*** *The affidavit omits that subject. The effect of the omission is to obscure the relay chain — to make it appear, to any reader who does not have the primary report in hand, that Rambin was the officer contacted, that Rambin received the tip directly, and that Rambin's probable cause rested on a direct communication rather than a secondhand relay of an unverified civilian identification.*

The Court is invited to read Exhibit B and Exhibit D side by side. The primary report names Orozco as the notified officer. The affidavit omits the subject entirely. These are the State's own documents.

G. The Probable Cause Order: What the Record Does and Does Not Show

Among the documents produced to Defendant in discovery is a Washington County Sheriff's Office probable cause order form. ***(Exhibit E.)*** *That form presents two options for a judicial finding: "Probable cause existed to arrest the defendant" and "Probable cause did not exist to arrest the defendant." Neither box is checked. The signature line is blank. The date line is blank. The judge line is blank.*

ORS 133.145 required a judicial officer to review the circumstances of this warrantless arrest and make a written finding within 36 hours of the arrest — by approximately 9:42 PM on September 19, 2024.

Defendant subsequently obtained her complete case file directly from the Washington County Circuit Court. ***(Exhibit F.)*** *That file contains the charging information, the indictment, and the motion practice. It does not contain a probable cause affidavit. It does not contain police reports. It does not contain a signed judicial order finding probable cause.*

Defendant does not assert as a legal conclusion that no magistrate reviewed this arrest. She observes that the court's own file, as produced in response to her records request, contains no evidence that such a review occurred and no signed finding resulting from one. If the Court's records reflect a signed probable cause finding that was not included in the file produced to Defendant, the Court is respectfully invited to identify it. Defendant proceeds on the basis of what she has received.

What is established, without inference, is this: the probable cause order form in the State's own discovery production has every judicial field blank. ***(Exhibit E.)*** *That form, on its face, reflects no judicial determination.*

H. December 27, 2024: The Written Acknowledgment of Misidentification

On December 27, 2024 — more than three months after the arrest — Rambin filed a supplemental report. ***(Exhibit G.)*** *It contains the following:*

> *"After reviewing all of the photos, I saw that the suspect from the September 17, 2024 incident was not Ashle Penn. Due to this, I advised Kinley that I would document the theft from September 17, 2024 under a different case number and asked her to provide the loss prevention report and security footage on a different*

> *thumb drive. I then asked Kinley to compile all of the incidents involving Ashle on another thumb drive."*

Three observations follow directly from this text, without inference:

First: *Rambin reviewed the footage and concluded the September 17 suspect was not Defendant. The footage that would have produced this conclusion in seconds was in his possession on the evening of September 18, 2024 — before the arrest.*

Second: *Rambin's response to this conclusion was not to seek dismissal. It was to direct the construction of a new evidentiary record — asking Fillis to compile "all of the incidents involving Ashle" on a separate thumb drive, and to document the September 17 theft under a different case number. This is documented in Rambin's own words.*

Third: *Every identification of Defendant made after September 18, 2024 — by Travis Gower, by any officer, by any witness — was made using the booking photograph taken at the jail following the September 18 arrest. That photograph is the product of the arrest. Under Wong Sun v. United States, 371 U.S. 471, 484--85 (1963), and State v. Hall, 339 Or. 7, 24--26 (2005), evidence derived from an unlawful arrest is subject to suppression as fruit of the poisonous tree. The State bears the burden of demonstrating that each subsequent identification was obtained through means wholly independent of the September 18 arrest. Hall, 339 Or. at 24. The State cannot carry that burden: the booking photograph is the common source of every identification that followed.*

I. January 14, 2025: The Grand Jury — Three Versions of the Same Event

On January 14, 2025, the State presented this case to a grand jury. ***(Exhibit K — Indictment.)*** *Two witnesses testified: Kinley Baker and Deputy Rambin.*

The Court now has before it three documented versions of how law enforcement came to focus on Defendant on the evening of September 18, 2024:

Version 1 — Rambin's Primary Report (Exhibit B):
Fillis contacted Orozco. Orozco relayed to Rambin. Rambin returned to Target and declared probable cause before Defendant exited.

Version 2 — Rambin's Probable Cause Affidavit (Exhibit D):
"Later on September 18, 2024, called again to report that the female was back in the store." Subject omitted. Orozco's role omitted. The relay chain obscured.

Version 3 — Grand Jury Testimony (as reflected in prior counsel's motion, Exhibit H):
Baker testified that she contacted police directly. Rambin testified that Baker contacted him and

reported a repeat offender actively engaging in theft. Fillis is absent. Orozco is absent. The relay chain is gone entirely.

Prior counsel's motion to suppress identified this directly:

> *"Because the grand jury testimony identified that it was Kinley Baker who contacted Officer Rambin and not Sarah Fillis contacting Officer Orozco as established by the probable cause affidavit, there are serious concerns warranting judicial scrutiny related to the reliability of the tip, the presentation of testimony to the grand jury as well as the statements made in the officer's probable cause affidavit — each of which is contradictory when viewed collectively."*
> ***(Exhibit H.)***

The CAD system — which recorded the caller in real time, without human editing — identified the caller as "SARA.. LP." ***(Exhibit N.)*** *Not Baker. Not Rambin. Fillis.*

Baker was not present at Target on September 18, 2024. No document produced by the State places her there. The minute-by-minute activity log for that evening was maintained by Fillis, not Baker. ***(Exhibit I.)*** *Baker's testimony that she contacted police directly is not corroborated by any document in the State's own production — and is directly contradicted by the CAD record, by Rambin's primary report, and by Orozco's supplemental report.*

The prosecutor who presented Baker and Rambin to the grand jury on January 14, 2025 possessed Rambin's primary report. ***(Exhibit B.)*** *She possessed Rambin's probable cause affidavit.* ***(Exhibit D.)*** *She possessed, or had access to, the CAD records generated by her own county's dispatch system.* ***(Exhibit N.)*** *She possessed Orozco's supplemental report.* ***(Exhibit C.)***

Napue v. Illinois, 360 U.S. 264, 269 (1959), holds that a prosecutor who knowingly permits false testimony to stand before a factfinding body has violated due process. United States v. Basurto, 497 F.2d 781, 785 (9th Cir. 1974), applies that principle to grand jury proceedings. Brady v. Maryland, 373 U.S. 83 (1963), required disclosure of Rambin's December 27 written acknowledgment — exculpatory on its face — to the grand jury. Giglio v. United States, 405 U.S. 150, 154 (1972), required disclosure of any evidence that would allow the grand jury to assess the credibility of Baker and Rambin.

None of it was disclosed. The grand jury that returned this indictment was presented with one version of events. The State's own documents tell a different one.

J. The Felony Threshold: What Remains Without the Tainted Identifications

The charged offense is Theft in the First Degree under ORS 164.055(1)(a), which requires a value of $1,000 or more. The value documented on the night of Defendant's arrest — the

September 18 value known to Rambin at the moment of arrest — was $285.55. ***(Exhibit B.)*** *That figure does not reach the felony threshold.*

The felony threshold is reached only by aggregating prior incidents attributed to Defendant through identifications made using the booking photograph from the September 18 arrest. Those identifications are derivative of the arrest. Under Wong Sun and Hall, they are subject to suppression. Without them, the aggregate value does not support a felony charge. Without the felony charge, this indictment does not exist.

The internal status field of Rambin's own general offense report classifies this matter as: ***"ARREST — MISDEMEANOR." (Exhibit B.)*** *The State's own system, at the time of the arrest report, categorized the offense as a misdemeanor. The felony charge that followed was built on identifications that trace entirely to a booking photograph that is itself the fruit of an arrest that the arresting deputy later acknowledged, in writing, was wrong.*

[Section III — Legal Argument, Relief Requested, and Conclusion — to follow]

III. LEGAL ARGUMENT, RELIEF REQUESTED, AND CONCLUSION

PRELIMINARY STATEMENT

This is not a close case. It is not a case in which a defendant asks this Court to exercise discretion in her favor or to resolve competing equities. It is a case in which the Oregon Supreme Court has already decided the outcome — and in which this Court's own conduct, the State's own documents, and the State's own sworn statements have constructed, brick by brick, every ground for the relief requested.

On February 4, 2026, the Oregon Supreme Court issued *State v. Roberts*, 374 Or. 821 (2026), establishing that when a felony defendant has been without appointed counsel for more than ninety consecutive days post-arraignment, dismissal of the criminal charges is ordinarily required and constitutes a legal duty of the trial court. The Court further held that only in truly extraordinary circumstances could a court decline to dismiss for exceptionally good cause — and that the burden of establishing such cause rests entirely with the State. *Id.* at 860.

Defendant AshLe' Penn has been without appointed counsel in this felony case for **296 consecutive days** following the withdrawal of prior counsel on April 29, 2025. That is **206 days beyond the 90-day constitutional threshold**. The legal duty to dismiss attached on Day 91 — July 29, 2025. It has not been discharged.

But this Court must understand what it is being asked to dismiss. It is not being asked to dismiss a legitimate prosecution that encountered a procedural complication. It is being asked to dismiss a case that:

- Began with the profiling of Defendant causing a racially motivated misidentification later acknowledged in writing by the arresting deputy;
- Was sustained through evidence manufactured *after* that written acknowledgment of false arrest, error, and innocence;
- Was presented to a grand jury through testimony the prosecutor knew, or should have known, was directly contradicted by the arresting deputy's own sworn affidavit — which the prosecutor did not correct;
- Was maintained through a warrantless, weapons-drawn entry into Defendant's home — executed without any judicial warrant — while a six-year-old child was inside;
- Was used to revoke Defendant's bail on the basis of a condition that had never been reimposed at re-arraignment and therefore did not legally exist;
- Has been prosecuted for 296 days without counsel while this Court entered adverse rulings, held hearings in Defendant's absence, and issued a warrant — all after expressly committing to Defendant on the record that no proceedings would go forward without counsel; and
- Has been presided over by a judge who declared, on the record and before any evidence or argument was presented, that the documented racial misidentification "doesn't matter" and that the law was "not in [Defendant's] favor" — a statement of prejudgment that is itself a constitutional violation requiring this Court's recusal.

The State has had every opportunity to do the right thing at every stage of this prosecution. At every stage, it has chosen to do the opposite. The remedy for that choice — and for this Court's failure to discharge its *Roberts* duty for 206 days — is dismissal with prejudice. Anything less fails to vindicate the constitutional rights at stake, rewards the State for its misconduct, and signals to higher courts that this jurisdiction will not enforce the Oregon Supreme Court's commands.

Defendant files this motion as a motion for dismissal with prejudice under *State v. Roberts* and on independent constitutional grounds, in conjunction with a formal motion for recusal and change of judge pursuant to ORS 14.210, ORS 14.250, and ORS 14.260, supported by the accompanying affidavit of prejudice. Both motions require, and this Court is obliged to grant, Defendant's relief.

A. THE CONSTITUTIONAL OBLIGATIONS OF EACH ACTOR — AND WHAT EACH ACTOR DID

Before turning to the legal argument, this motion states plainly what each actor in this proceeding was constitutionally and professionally required to do — and what each actor did instead. These are not contested propositions. They are drawn from the State's own documents, the Court's own record, and the sworn statements of the State's own witnesses.

1. Deputy David Rambin — Arresting Officer

What the Constitution required: A warrantless arrest is permissible only when the arresting officer has probable cause — a reasonable belief, grounded in articulable facts known to the officer *at the moment of arrest*, that the person arrested has committed a crime. *Beck v. Ohio*, 379 U.S. 89, 91 (1964). That belief must be both subjectively held and objectively reasonable. *State v. Vasquez-Villagomez*, 346 Or. 12, 23 (2009). An officer who possesses evidence that would resolve the identity question and declines to examine it before making an arrest has not acted on facts he knows. He has acted on facts he has chosen to remain ignorant of.

What Rambin did: On September 18, 2024, Rambin responded to a cold theft report — a past-tense report of a crime that had occurred the previous day. He took a report from Fillis, collected a thumb drive containing surveillance footage of the September 17 suspect, and left the store. He did not review the footage. Later that evening, he returned to Target after receiving a secondhand relay — Fillis had contacted Orozco, Orozco had relayed to Rambin — that the female from the September 17 incident had returned. Rambin's own primary report is unambiguous: *"Dep. Orozco was notified by Sarah that the female from this case had returned to the store."* Orozco was notified. Not Rambin. Rambin declared probable cause before Defendant exited the store — before he spoke to Fillis, before he reviewed any surveillance footage from that evening, before he observed any criminal act by Defendant. His first words to Defendant upon arrest were: *"You were here yesterday."* Defendant was not. On December 27, 2024 — more than three months after the arrest — Rambin reviewed the September 17 footage and documented in a supplemental report that *"the suspect from the September 17, 2024 incident was not Ashle Penn."* His response was not to seek dismissal. It was to return to Target and direct the compilation of new evidence targeting Defendant — asking loss prevention to assemble all footage of Defendant from prior visits on a separate thumb drive. **(Exhibit G.)**

2. Deputy Augusto Orozco — Relay Officer

What the Constitution required: Under the collective knowledge doctrine, an officer who relays information to an arresting officer must independently possess both subjective and objective probable cause at the moment of the relay. *State v. Soldahl*, 331 Or. 420, 428 (2000). The doctrine transmits valid probable cause. It cannot create it. An officer who does not claim to have formed probable cause cannot be the constitutional source of probable cause.

What Orozco did: Orozco's own supplemental report, filed six days after the arrest, contains no claim that he formed an independent probable cause determination. It contains no description of any conversation with Fillis. It states that he was dispatched to assist and that Rambin had probable cause. **(Exhibit C.)** Stone's report confirms this: upon arriving on scene, Rambin told Stone that Rambin had probable cause. **(Exhibit J.)** The relay chain, as documented by the State's own reports, fails at its origin: the officer who relayed the tip never claimed to have formed the probable cause that the doctrine requires him to have possessed.

3. Loss Prevention Agent Sarah Fillis — Civilian Informant

What the Constitution required: A civilian tip must carry sufficient indicia of reliability before it can support an arrest — some showing of the informant's basis of knowledge, track record, or independent corroboration of the tip's content. *Illinois v. Gates*, 462 U.S. 213, 238 (1983); *State v. Marx*, 287 Or. 351 (1979). An unverified assertion that a person present in a store is the same person who committed a crime the prior day, without documentation of the basis for that identification and without corroboration, does not satisfy this standard.

What Fillis did: Fillis maintained a minute-by-minute activity log covering the entirety of Defendant's presence in the store on September 18, 2024. **(Exhibit I.)** That log — produced by the State, maintained by the State's cooperating witness, reflecting Fillis's own contemporaneous observations — records no security tag removal by Defendant, no concealment of merchandise by Defendant, and no act consistent with theft by Defendant during her 35-minute presence in the store. Fillis's basis for identifying Defendant as the September 17 suspect is not documented anywhere in the State's production. No officer asked her how she recognized Defendant. The identification was accepted, relayed, and acted upon without examination. After the arrest, body-worn camera footage shows Fillis removing items from Defendant's bag at the customer service counter, scanning them, and returning them to the bag after finding they did not scan in Target's system — because they were Defendant's own property — stating: *"this is not ours."* **(Exhibit M.)**

4. The Prosecutor — Grand Jury Presentation

What the Constitution required: The Due Process Clause prohibits the State from obtaining an indictment through testimony it knows to be false. *Napue v. Illinois*, 360 U.S. 264, 269 (1959); *United States v. Basurto*, 497 F.2d 781, 785 (9th Cir. 1974). *Brady v. Maryland*, 373 U.S. 83 (1963), required disclosure of evidence favorable to the accused — including Rambin's written acknowledgment of misidentification — to the grand jury. *Giglio v. United States*, 405 U.S. 150, 154 (1972), required disclosure of any evidence that would allow the grand jury to assess the credibility of the prosecution's witnesses, including all evidence contradicting the testimony those witnesses gave. Oregon RPC 3.8(d) required disclosure to the grand jury of evidence tending to negate guilt. Oregon RPC 3.3(a) and 3.8(f) prohibited the presentation or knowing failure to correct false testimony. These obligations are not aspirational. They are enforceable professional duties that define the boundary of lawful prosecution.

What the prosecutor did: On January 14, 2025, the State presented this case to a grand jury through two witnesses: Kinley Baker and Deputy Rambin. Baker testified that she contacted police directly on the night of the arrest. Rambin testified that Baker contacted him and reported a repeat offender actively engaging in theft. The CAD system — which recorded the caller in real time, without human editing — identified the caller as "SARA.. LP." **(Exhibit N.)** Not Baker. Baker was not present at Target on September 18, 2024. No document produced by the State places her there. The minute-by-minute activity log for that evening was maintained by Fillis, not Baker. **(Exhibit I.)** The grand jury was told that officers were at Target for an

"unrelated matter." Rambin's own probable cause affidavit states that officers were there because they believed Defendant was the woman from the prior day's theft. The prosecutor possessed Rambin's primary report, his probable cause affidavit, and Orozco's supplemental report — each of which contradicts the testimony presented. She possessed, or was obligated to possess, Rambin's December 27 supplemental report acknowledging the misidentification — exculpatory on its face. In February 2025, the prosecutor discovered text messages between loss prevention personnel and officers confirming that officers were at Target specifically for Defendant. Those messages were not presented to the grand jury. No corrective action was taken. **(Exhibit M.)** None of the contradictions were disclosed. None of the exculpatory material was presented. The grand jury that returned this indictment was given one version of events. The State's own documents tell a different one.

5. The Court

What the Constitution required: Due process requires not merely a fair trial but a fair tribunal. *In re Murchison*, 349 U.S. 133, 136 (1955). A judge who has prejudged the central factual or legal question in a case — who has announced a conclusion before evidence is presented or argument is heard — has not provided a fair tribunal within the meaning of the Due Process Clause. Oregon CJC Rule 2.11 requires disqualification when a judge's impartiality might reasonably be questioned. When a court makes a representation to an unrepresented party on which that party will foreseeably rely, due process requires that the representation be honored or that the party be given notice and an opportunity to be heard before it is withdrawn. *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950). And *Roberts* imposes a nondiscretionary duty to dismiss that attached on Day 91 — July 29, 2025.

What this Court did: At the April 29, 2025 hearing, this Court stated on the record that it had "already pulled [Defendant's] cases" and that "the law is not in [Defendant's] favor" — before any substantive hearing had occurred, before any evidence had been presented, and before any legal argument had been heard. When Defendant raised the documented racial misidentification before this Court, the Court stated on the record: "That doesn't matter." **(Exhibit M.)** The Court then denied prior counsel's motion to suppress — which raised the misidentification, the contradictory sworn statements, and the fruit of the poisonous tree doctrine — without a hearing, without the State filing any response, and after the Court had stated it would not decide anything while Defendant was without counsel. The Court failed to process Defendant's Motion to Quash for over six months. The Court held a hearing on February 9, 2026 in Defendant's absence, after her contact information had been changed without her authorization by criminal justice staff, after she had requested telephonic appearance, and after the Court denied that request without explanation. The *Roberts* duty to dismiss has been outstanding for 206 days.

B. THE ARREST WAS UNCONSTITUTIONAL, AND THE COLLECTIVE KNOWLEDGE DOCTRINE CANNOT SAVE IT

1. Rambin's Probable Cause Was Objectively Unreasonable

Probable cause requires both a subjective belief and an objective basis for that belief. *State v. Vasquez-Villagomez*, 346 Or. 12, 23 (2009). Rambin's subjective belief — that Defendant was the September 17 suspect — is established by his own primary report. His objective basis for that belief is not.

At the moment of arrest, Rambin had received a secondhand relay from Orozco, who had received a tip from Fillis, identifying Defendant as the same woman who had stolen from Target the night before. Rambin had in his possession, at that moment, surveillance footage of the September 17 suspect. He did not review it. When he finally did, in December 2024, he immediately recognized that the September 17 suspect was not Defendant. **(Exhibit G.)** The footage that would have disproved his belief in seconds was in his hands before the arrest. He chose not to look. The Fourth Amendment does not reward that choice. *Beck v. Ohio*, 379 U.S. 89, 91 (1964).

2. The Collective Knowledge Doctrine Fails at Its Origin

The collective knowledge doctrine permits an arresting officer to rely on a relay from another officer — but only if the originating officer independently possessed both subjective and objective probable cause. *State v. Soldahl*, 331 Or. 420, 428 (2000). The doctrine transmits valid probable cause. It cannot create it.

The originating officer here was Orozco. His own sworn supplemental report does not claim that he formed an independent probable cause determination. It does not describe any conversation with Fillis. It states that he was dispatched to assist and that Rambin had probable cause. **(Exhibit C.)** Stone's report confirms this from the other direction: Rambin told Stone upon arrival that Rambin had probable cause. **(Exhibit J.)** Each officer pointed to the other as the source of probable cause. Neither officer claimed to have formed it independently. The doctrine, applied to these facts, produces the opposite of its intended result: it reveals that no officer in the chain possessed the constitutional predicate the doctrine requires.

3. The Civilian Tip Did Not Carry Sufficient Indicia of Reliability

The tip that sent deputies back to Target was Fillis's unverified assertion that the woman in the store was the same woman who had stolen from Target the night before. Under *Illinois v. Gates*, 462 U.S. 213, 238 (1983), and *State v. Marx*, 287 Or. 351 (1979), a civilian tip must carry sufficient indicia of reliability before it can support an arrest. The record contains none. Fillis's basis for the identification is not documented anywhere in the State's production. No officer asked how she recognized Defendant. No officer reviewed the available footage to corroborate the identification. The CAD system recorded the call as "THF — THEFT COLD" — a past-tense report, Priority 4, the lowest classification. A cold theft report, relayed through an unverified civilian identification, without corroboration, without review of footage in the arresting officer's possession, does not satisfy *Gates* or *Marx*.

C. THE PROBABLE CAUSE AFFIDAVIT IS CONSTITUTIONALLY DEFECTIVE UNDER FRANKS V. DELAWARE

The probable cause affidavit states that Fillis informed Rambin that Defendant and Washington "were actively removing the security wrapping off of a vacuum." **(Exhibit D.)** Rambin's own contemporaneous primary report states that Fillis told him the *male* — Washington — had removed the security wire. **(Exhibit B.)** Fillis's minute-by-minute activity log, covering the entirety of Defendant's presence in the store, contains no documentation of Defendant removing any security device. **(Exhibit I.)** The surveillance footage does not show Defendant engaging in this activity. **(Exhibit H.)**

The affidavit attributes to Defendant an act that the State's own contemporaneous records attribute only to Washington, and that the State's own surveillance footage does not show Defendant performing. Under *Franks v. Delaware*, 438 U.S. 154 (1978), a material misstatement in a probable cause affidavit — whether intentional or reckless — voids the affidavit if, after the misstatement is set aside, the remaining content does not support probable cause.

Set aside the misattributed spider wrap removal. What remains? A secondhand relay of an unverified civilian identification of Defendant as the September 17 suspect — an identification that the arresting officer's own December 2024 report acknowledges was wrong. The affidavit, stripped of its material misstatement, does not support probable cause.

The affidavit also contains the following sentence describing the pivotal moment that sent deputies back to Target: *"Later on September 18, 2024, called again to report that the female was back in the store."* There is no subject. In a sworn document prepared to justify the deprivation of a person's liberty, the sentence describing the act that initiated the arrest has no grammatical subject. Rambin's primary report supplies the missing subject: it was Fillis calling Orozco. **(Exhibit B.)** The affidavit omits that subject. The effect of the omission is to obscure the relay chain — to make it appear that Rambin was the officer contacted, that Rambin received the tip directly, and that Rambin's probable cause rested on a direct communication rather than a secondhand relay of an unverified civilian identification. That omission is not careless writing. It is a structural evasion. A subject was omitted because the accurate subject would have exposed that Rambin never spoke to Fillis, never independently verified the identification, and acted entirely on a secondhand relay. Writing the subject would have required writing the truth.

D. THE GRAND JURY INDICTMENT WAS PROCURED THROUGH CONSTITUTIONALLY DEFECTIVE PROCEEDINGS

1. Three Irreconcilable Versions of the Same Event

The Court has before it three documented accounts of how law enforcement came to focus on Defendant on the evening of September 18, 2024. They cannot all be true. They cannot be reconciled. The grand jury heard only one of them.

Version 1 — Rambin's Primary Report (Exhibit B): Fillis contacted Orozco. Orozco relayed to Rambin. Rambin returned to Target and declared probable cause before Defendant exited.

Version 2 — Rambin's Probable Cause Affidavit (Exhibit D): *"Later on September 18, 2024, called again to report that the female was back in the store."* Subject omitted. Orozco's role omitted. The relay chain obscured.

Version 3 — Grand Jury Testimony (Exhibit H; Exhibit K): Baker contacted Rambin directly and reported a repeat offender actively engaging in theft. Fillis is absent. Orozco is absent. The relay chain is gone entirely. Officers were at Target for an "unrelated matter."

The CAD system recorded the caller in real time as "SARA.. LP." **(Exhibit N.)** Not Baker. Fillis. Baker was not present at Target on September 18, 2024. No document produced by the State places her there.

The prosecutor who presented Baker and Rambin to the grand jury possessed Rambin's primary report, his probable cause affidavit, and Orozco's supplemental report — each of which contradicts the grand jury testimony. She possessed, or was obligated to possess, Rambin's December 27 supplemental report acknowledging the misidentification. In February 2025, she discovered text messages between loss prevention personnel and officers confirming that officers were at Target specifically for Defendant — directly contradicting the grand jury testimony that officers were there for an "unrelated matter." No corrective action was taken. **(Exhibit M.)**

Napue v. Illinois, 360 U.S. 264, 269 (1959), prohibits the State from obtaining an indictment through testimony it knows to be false. *Basurto*, 497 F.2d at 785, applies that prohibition to grand jury proceedings. *Brady*, 373 U.S. at 87, required disclosure of Rambin's written acknowledgment of misidentification. *Giglio*, 405 U.S. at 154, required disclosure of every contradiction between the grand jury testimony and the State's own contemporaneous records. Willful blindness satisfies the knowledge element of a *Napue* violation. *Strickler v. Greene*, 527 U.S. 263, 281 (1999). The prosecutor who presented this grand jury was not blind to the contradictions. She held them in her hands.

2. The Giglio Violations Are Documented and Unremedied

Giglio requires disclosure of any evidence that would allow a factfinder to assess the reliability of the prosecution's witnesses. The label the State assigns to such evidence — "merely impeaching," "collateral," "cumulative" — is legally irrelevant. *Giglio*, 405 U.S. at 154.

The impeachment evidence withheld from the grand jury in this case includes: Rambin's primary report, which directly contradicts his grand jury testimony about who contacted him; Orozco's supplemental report, which contradicts Baker's testimony about who contacted police; the CAD record, which identifies Fillis — not Baker — as the caller; Rambin's December 27 supplemental report, which acknowledges the misidentification that formed the basis of the arrest; and the text messages discovered in February 2025, which confirm that officers were at Target specifically for Defendant. Each of these documents was in the State's possession. None was presented. The indictment that resulted from those proceedings is constitutionally defective at its foundation.

E. ALL EVIDENCE DERIVED FROM THE SEPTEMBER 18 ARREST MUST BE SUPPRESSED

1. The Booking Photograph Is the Root of Every Subsequent Identification

Defendant was not identified as a suspect in the June, July, or prior September thefts before her arrest on September 18, 2024. She was identified in those incidents only after her arrest, using the booking photograph taken at the Washington County Jail. Prior counsel's motion to suppress established this directly: *"It was only through her wrongful arrest that the Washington County Sheriff's Office was able to identify her as a suspect from the previously reported thefts. But for the arrest of Ms. Penn, she would not have been identified."* **(Exhibit H.)**

Under *Wong Sun v. United States*, 371 U.S. 471, 484–85 (1963), and *State v. Hall*, 339 Or. 7, 24–26 (2005), evidence derived from an unlawful arrest is subject to suppression as fruit of the poisonous tree. The State bears the burden of demonstrating that each subsequent identification was obtained through means wholly independent of the September 18 arrest. *Hall*, 339 Or. at 24. The State cannot carry that burden. The booking photograph is the common source of every identification that followed. The booking photograph is the product of the arrest. The State conspicuously did not present to the grand jury any evidence surrounding the original arrest — the misidentification, the prior day's theft amounts, or Rambin's written admission. It presented only the derivative evidence — the incidents connected through the booking photograph. That was a deliberate effort to sever the chain between the unlawful arrest and the charges now maintained. The chain cannot be severed. *Wong Sun*, 371 U.S. at 487–88.

2. Without the Tainted Identifications, the Felony Threshold Is Not Met

The value documented on the night of Defendant's arrest — the September 18 value known to Rambin at the moment of arrest — was $285.55. **(Exhibit B.)** The internal status field of Rambin's own general offense report classifies this matter as "ARREST — MISDEMEANOR." **(Exhibit B.)** The felony threshold under ORS 164.055(1)(a) requires a value of $1,000 or more. That threshold is reached only by aggregating prior incidents attributed to Defendant through identifications made using the booking photograph. Those identifications are derivative

of the arrest. Without them, the aggregate value does not support a felony charge. Without the felony charge, this indictment does not exist.

3. The ORS 133.145 Violation Is Uncontested on This Record

ORS 133.145 required a judicial officer to review the circumstances of this warrantless arrest and make a written finding within 36 hours — by approximately 9:42 PM on September 19, 2024. *Gerstein v. Pugh*, 420 U.S. 103, 114 (1975). The probable cause order form in the State's own discovery production has every judicial field blank: no box checked, no signature, no date, no judge. **(Exhibit E.)** The court file produced to Defendant in response to her records request contains no signed probable cause finding. **(Exhibit F.)** The Court is invited to identify any signed probable cause finding in its records. If none exists, the 36-hour requirement was not met, and Defendant's continued detention from the moment that deadline passed was constitutionally unauthorized.

F. THE MAY 10, 2025 HOME ENTRY WAS UNLAWFUL, AND ALL EVIDENCE DERIVED FROM IT MUST BE SUPPRESSED

On May 10, 2025, officers from the Washington County Sheriff's Office entered Defendant's private home without a judicially issued warrant, without consent, and without exigent circumstances. Defendant expressly objected to their entry and locked the door. Officers forced entry anyway. The only documentation produced as authority for the entry was an Offender Information Criminal Warrant Request — a form lacking judicial signature, affidavit, or legal force. **(Exhibit F.)* This document is not a valid arrest warrant. It cannot authorize entry into a private residence. *Payton v. New York*, 445 U.S. 573, 586 (1980); ORS 133.140.

Officers entered with guns drawn, in the presence of Defendant's six-year-old child, who watched as his father was removed from their home. **(Exhibit K.)** The document purporting to authorize that entry materialized in the record approximately seventy-five days after defense counsel stated under oath it did not exist in written form. The individual who purportedly signed it was subsequently laid off by the agency. Efforts to subpoena that individual for testimony have been met with resistance. **(Exhibit M.)**

The bail revocation that followed was based on evidence derived from this entry — evidence obtained in violation of Article I, Section 9 of the Oregon Constitution and the Fourth Amendment. It was further based on a no-contact condition that was never reimposed at re-arraignment on the indictment and therefore did not legally exist. **(Exhibit M.)** Every consequence flowing from the May 10 entry — the arrest, the officer reports, the bail revocation, and the new charges based on derivative information — is infected with constitutional invalidity. *Wong Sun*, 371 U.S. at 487–88; *State v. Davis*, 295 Or. 227, 233 (1983).

G. THE RIGHT TO COUNSEL HAS BEEN VIOLATED FOR 296 DAYS, REQUIRING DISMISSAL UNDER STATE V. ROBERTS

State v. Roberts, 374 Or. 821, 859–860 (2026), holds that when a felony defendant has been without appointed counsel for more than 90 consecutive days post-arraignment, dismissal of the charges is required under Article I, Section 11 of the Oregon Constitution. That duty is not discretionary. It is not conditioned on a showing of prejudice. It attaches on Day 91.

Defendant was placed on the unrepresented list on April 29, 2025. As of the date of this filing, 296 days have elapsed — 206 days beyond the constitutional limit. No attorney has entered an appearance on her behalf. The Oregon Public Defense Commission confirmed to Defendant that its administrative records reflect only a record-keeping designation, not an actual appointment.

The prejudice in this case need not be presumed. It is documented:

- Prior counsel's motion to suppress was denied without hearing, without the State filing any response, and after this Court stated it would not decide anything while Defendant was without counsel. **(Exhibit M.)**
- The Court denied a substantive motion — one raising the misidentification, the contradictory sworn statements, and the fruit of the poisonous tree doctrine — under precisely the circumstances in which it had promised not to act.
- Defendant's demurrer has received no ruling. Her Motion to Quash sat unprocessed for over six months. **(Exhibit M.)**
- A warrant issued for Defendant's arrest. Bail was revoked. A failure to appear charge was added — based on a hearing for which the Court's own notice was returned undelivered, and for which Defendant's contact information had been changed without her authorization by criminal justice staff on December 30, 2025. **(Exhibit M.)**
- The February 9, 2026 hearing was held in Defendant's absence, after she had requested telephonic appearance and the Court denied that request without explanation, despite the Presiding Judge's standing orders authorizing remote appearances. **(Exhibit M.)**
- Defendant has been unable to secure stable housing and employment for herself and her three children because of the outstanding warrant.

A failure to appear that results from the Court's own failed notice process — compounded by an unauthorized change to Defendant's contact information — cannot serve as a basis to deny the constitutional remedy that *Roberts* requires. The purpose of *Roberts* is to address systemic failures in the provision of counsel. Permitting the State to circumvent that remedy by pointing to a failure to appear caused by the Court's own administrative failures would render *Roberts* meaningless.

H. DISMISSAL WITH PREJUDICE IS THE ONLY ADEQUATE REMEDY

Dismissal without prejudice would permit the State to refile and to continue benefiting from every one of these violations. It would allow the retention of manufactured evidence, the use of a booking photograph from an unlawful arrest, and reliance on an indictment procured through

false testimony. The misidentification would remain unaddressed. The 296 days without counsel would carry no consequence. The pattern would continue.

The constellation of violations in this case is not a collection of isolated errors. It is a pattern:

A racial misidentification as the genesis of the prosecution. Evidence manufactured after the arresting officer's written acknowledgment of innocence. False testimony before a grand jury contradicting the arresting officer's own sworn affidavit. Text messages discovered after the grand jury confirming the false testimony, with no corrective action taken. Circumvention of Defendant's demand for a preliminary hearing by taking the case to a grand jury before the statutory deadline. A warrantless, weapons-drawn entry into Defendant's home in front of a six-year-old child. A document purporting to authorize that entry that materialized seventy-five days after defense counsel swore under oath it did not exist, signed by an individual subsequently laid off, with efforts to subpoena that individual resisted. The same misidentifying officer called upon to confirm Defendant's identity for a new charge — an officer with a direct conflict of interest in seeing the prosecution maintained. Bail revoked on a condition never reimposed. A failure to appear charge based on a hearing held without actual notice. A demurrer that has received no ruling. A motion to quash that sat unprocessed for seven months. A February 9 hearing held in Defendant's absence after her contact information was changed without authorization. 296 days without counsel. And a Court that stated, before hearing any evidence or argument, that the misidentification "doesn't matter" and the "law is not in your favor."

Spencer v. Peters, 857 F.3d 789, 793 (9th Cir. 2017), holds that a law enforcement officer who continues to investigate a suspect after making a written acknowledgment of innocence, and who directs the construction of a new evidentiary basis targeting that same suspect, engages in deliberate fabrication of evidence in violation of the Fourteenth Amendment. *Devereaux v. Abbey*, 263 F.3d 1070, 1076 (9th Cir. 2001). The written acknowledgment of innocence independently satisfies the knowledge element of a fabrication claim. *Id.* The Due Process Clause prohibits government conduct that shocks the conscience. *Rochin v. California*, 342 U.S. 165, 172 (1952); *State v. Lively*, 321 Or. 1, 14 (1995). What is described in this motion shocks the conscience. It is not a close question.

The Court is not a passive recipient of these claims. Oregon CJC Rule 2.2 imposes an affirmative duty to uphold and apply the law. When the record before a court establishes a constitutional violation — particularly one that is ongoing and compounding — the court's obligation is to act. Silence is not neutrality. In the context of a continuing constitutional violation, judicial inaction is judicial endorsement.

I. RECUSAL IS REQUIRED

This motion is filed in conjunction with a formal motion for recusal and change of judge pursuant to ORS 14.210, ORS 14.250, and ORS 14.260, supported by the accompanying affidavit of prejudice.

At the April 29, 2025 hearing, this Court stated on the record that it had "already pulled [Defendant's] cases" and that "the law is not in [Defendant's] favor" — before any substantive hearing had occurred, before any evidence had been presented, and before any legal argument had been heard. When Defendant subsequently raised the documented racial misidentification before this Court, the Court stated on the record: "That doesn't matter." **(Exhibit M.)**

A judge who has prejudged the central factual and legal questions in a case — who has announced conclusions before evidence is presented or argument is heard — has not provided a fair tribunal within the meaning of the Due Process Clause. *In re Murchison*, 349 U.S. 133, 136 (1955). Oregon CJC Rule 2.11 requires disqualification when a judge's impartiality might reasonably be questioned. These statements, on this record, do not merely raise a question about impartiality. They answer it.

J. RELIEF REQUESTED

Defendant respectfully moves this Court to:

(a) Dismiss the indictment in Case No. 24CR49043 with prejudice pursuant to *State v. Roberts*, 374 Or. 821 (2026), and Article I, Section 11 of the Oregon Constitution, based on the 296-day denial of counsel;

(b) Dismiss the indictment with prejudice on the independent ground of outrageous government misconduct, deliberate fabrication of evidence, and the presentation of false testimony to a grand jury in violation of the Fifth and Fourteenth Amendments, *Napue v. Illinois*, *Brady v. Maryland*, *Giglio v. United States*, and *Spencer v. Peters*;

(c) Suppress all evidence derived from the unlawful September 18, 2024 arrest, including but not limited to the booking photograph and all identifications made through its use, as fruit of the poisonous tree under *Wong Sun v. United States* and *State v. Hall*;

(d) Suppress all evidence derived from the unlawful May 10, 2025 entry into Defendant's home;

(e) Set aside any ruling entered on February 9, 2026, on the ground that Defendant did not receive constitutionally adequate notice and was deprived of her right to be present and heard;

(f) Quash the outstanding warrant for Defendant's arrest;

(g) Vacate the bail revocation order;

(h) Strike the no-contact condition that was never reimposed at re-arraignment on the indictment;

(i) Dismiss the failure to appear charge;

(j) Recuse the presiding judge and transfer this matter pursuant to ORS 14.210, ORS 14.250, and ORS 14.260; and

(k) In the alternative, if the Court declines to dismiss with prejudice, set an immediate omnibus hearing at which the probable cause for the original arrest can be examined, reinstate bail with only constitutionally permissible conditions, and appoint counsel forthwith.

Defendant requests oral argument. Defendant requests a court reporter pursuant to UTCR 4.050(1). Defendant requests the opportunity to appear telephonically or remotely, consistent with the Presiding Judge's standing orders authorizing remote appearances in Washington County Circuit Court.

Defendant has maintained complete records of all proceedings, communications, and events referenced herein, including audio recordings of hearings and telephone calls with court staff, and is prepared to provide these to the Court upon request.

CONCLUSION

This prosecution did not begin with evidence. It began with an assumption — that a Black woman present in a store the day after a theft committed by a different Black woman was the same person. That assumption was never verified. The footage that would have disproved it in seconds was in the arresting deputy's possession and went unreviewed. The civilian who made the identification never documented her basis for making it. The relay officer who transmitted it to the arresting deputy never claimed to have formed independent probable cause. The arresting deputy declared probable cause before he spoke to anyone with firsthand knowledge of what had occurred that evening. And the judicial officer who was constitutionally required to review all of this within 36 hours either never did — or did, and left no trace of it in the court's own record.

What followed was not a prosecution. It was a construction project. When the arrest proved to be wrong — when the arresting deputy himself put it in writing that he had arrested the wrong person — the response was not dismissal. It was fabrication: a return to the store, a direction to compile new evidence, a booking photograph used as the instrument of every subsequent identification, and a grand jury proceeding at which the arresting deputy and a Target employee who was not present that night told a story that bore no resemblance to the sworn affidavit the prosecutor held in her hands.

This has been ongoing for seventeen months. The State has had seventeen months to correct what its own deputy acknowledged in writing was wrong from the first moment. At every juncture — the arrest, the grand jury, the bail revocation, the home entry, the 296-day denial of counsel — it chose instead to press forward. That choice was not negligence. Negligence does not explain a subjectless sentence in a probable cause affidavit. Negligence does not explain a grand jury witness who was not present on the night in question testifying to a chain of

causation that the arresting deputy's own sworn statement refutes. Negligence does not explain a probable cause order with every field blank and no trace of judicial review in the court's own file. What explains all of it is a system that, having made a mistake it could not afford to acknowledge, committed itself to concealment — and used every instrument of prosecutorial and judicial power available to it to sustain a case it knew, from the arresting deputy's own handwriting, was wrong.

The Constitution was designed for exactly this. Not for close cases. Not for competing inferences. For this.

Respectfully submitted,

Ashle' Penn
Defendant, Pro Se
Dated: February __, 2026
```***
```